

HOUSE No. 3331

The Commonwealth of Massachusetts

PRESENTED BY:

Ann-Margaret Ferrante and Hannah Kane

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing the Executive Office of Food Resources and Security.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Ann-Margaret Ferrante</i>	<i>5th Essex</i>	<i>1/17/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/17/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/30/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/30/2025</i>

HOUSE No. 3331

By Representatives Ferrante of Gloucester and Kane of Shrewsbury, a petition (accompanied by bill, House, No. 3331) of Ann-Margaret Ferrante, Hannah Kane and others for legislation to establish an executive office of food resources and security. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3029 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing the Executive Office of Food Resources and Security.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 6A of the General Laws, as appearing in the 2012
2 Official Edition, is hereby amended by inserting after the word “affairs”, in line 3, the following
3 words:- , food resources and security.

4 SECTION 2. Section 3 of chapter 23G of the General Laws is hereby amended by
5 inserting after the word “projects”, in line 89, as appearing in the 2012 Official Edition, the
6 following words:- and loans to food producers selected by the department of investment and
7 financing for food production pursuant to section 10 of chapter 28B.

8 SECTION 3. The General Laws are hereby amended by inserting after section 28A the
9 following chapter:-

CHAPTER 28B.

EXECUTIVE OFFICE OF FOOD RESOURCES AND SECURITY

Section 1. As used in this chapter, the following words shall, unless the context clearly requires otherwise, have the following meanings:-

“Food Producer”, a person who produces food by farming, as that term is defined in section 1A of chapter 128, in the commonwealth, or by taking and selling fish, including shellfish, lobsters, edible crabs or other living marine resources, from coastal waters of the commonwealth under a commercial fishing license, permit or certificate issued pursuant to chapter 130.

“Food production”, the process by which a food producer cultivates, raises, harvests, collects, takes, gathers or otherwise handles plant or animal life, in whole or in part, whether or not embedded in the soil, for the purpose of offering for sale such plant or animal life, or part thereof, as food in the open market.

“Office”, the executive office of food resources and security.

“Secretary”, the secretary of food resources and security.

Section 2. There shall be an executive office of food resources and security, which shall be under the supervision and control of a secretary of food resources and security, appointed by the governor. The secretary may, pursuant to chapter 30A, adopt regulations for the implementation or interpretation of any law enforced or administered by any department, office, agency, or other entity in the executive office of food resources and security. In the executive office shall be the department of food production, the department of food labor and workforce

development, the department of food innovation, development and research, the department of investment and financing for food production, the department of food security, identification and labeling, the department of economic development for locally-produced food, the department of nutrition and food health and the department of self-sufficiency for food production. Each department shall be headed by a commissioner. The executive office shall be organized and shall function as a single state agency with the authority and control for administrative purposes including, but not limited to, for the purposes of the accounting and financial system of the commonwealth. The secretary shall, notwithstanding any general or special law to the contrary, identify and consolidate administrative activities and functions common to the separate departments within the office and may designate such functions “core administrative functions” in order to improve administrative efficiency and preserve fiscal resources; provided, however, that common functions that shall be designated core administrative functions shall include, but shall not be limited to, human resources, financial management, information technology, legal, procurement and asset management.

Each commissioner shall be appointed and may be removed by the secretary, with the approval of the governor. Each commissioner shall be a person of skill and experience in the field of his appointment. The commissioner of each department may adopt reasonable regulations to allow those employees within his or her department to testify in civil proceedings so as to further the performance of the department's business. The commissioner of each department shall appoint all necessary employees within the department, except as may be otherwise provided by law. The positions of commissioner shall not be subject to the provisions of chapter 31 or section 9A of chapter 30. Each commissioner shall perform such functions as may be assigned to him by the secretary and shall devote his full time during business hours to

the duties of the position. In case of a vacancy or an emergency, the secretary may appoint a person as acting commissioner for a period not exceeding 6 months, of any of the above departments, provided, the appointee is a person of skill and experience in the field of his or her appointment. The positions of the commissioners shall be classified in accordance with section 45 of chapter 30 and the salaries shall be determined in accordance with section 46C of said chapter 30.

Section 3. The office and its appropriate departments shall carry out policy relative to food production and in so doing shall:

(1) foster and support food producers so they are able to effectively and safely produce, market and sell food in a sustainable manner throughout the commonwealth.

(2) promote job creation and economic development in food production and local food distribution;

(3) create a workforce in food production that gives rise to an attractive environment for next-generation food production workers and researchers;

(4) develop and administer programs and incentives to improve nutrition and promote healthy eating habits across all age groups;

(5) develop statewide policies to increase demand for local foods through marketing and branding initiatives, and improve market and environmental statistics to support such policies;

(6) encourage, support, and undertake research and maintain laboratory and other research facilities to produce information regarding the science of food production,

74 transportation and consumption for the benefit of the commonwealth, its communities, its
75 citizens and other interested parties;

76 (7) enter into contracts and partnerships with private and public institutions for the
77 advancement of the goals and directives set forth in this chapter;

78 (8) develop and administer programs and recommendations to reduce input costs, while
79 strengthening financing and business planning for food producers;

80 (9) develop and administer programs to strengthen food production in the
81 commonwealth so that in the future, Massachusetts would be better suited to feed all its citizens
82 without importation of food from other states;

83 (10) foster strong relationships with food producers and consumers to achieve the goals
84 and directives set forth in this chapter while creating opportunities for cultural and economic
85 growth for the citizens of this commonwealth;

86 (11) advise and assist local governments, private and public institutions, organizations
87 and associations, businesses, industries, and individuals by providing and acting as a
88 clearinghouse for food production and labeling and consumption information, data, and other
89 materials;

90 (12) represent and act on behalf of the commonwealth in connection with federal grant
91 programs;

92 (13) keep accounts, records, personal data, enter into contracts, adjust claims, accept
93 gifts, grants, bequests and devises, and subject to appropriation, acquire real or personal property
94 by eminent domain or otherwise;

(14) advise and assist state agencies, cities, towns, and other units of local government in the preparation of grant or loan applications with respect to any food production or protection programs;

(15) coordinate activities among public institutions of higher education to engage in complementary state educational programs and collaborative research initiatives regarding food production; and

(16) promulgate rules and regulations necessary to carry out their statutory responsibilities.

Section 4. The secretary shall have the following powers and duties concerning any power or duty assigned to any department:

(1) the power and duty to resolve administrative and jurisdictional conflicts between any such departments or officers;

(2) the power and duty to implement, upon request of any such department or officer, programs jointly agreed to by the secretary and such agency or officer; and

(3) the power and duty to coordinate and improve program activities involving 2 or more such departments or officers.

Section 5. The secretary shall conduct comprehensive planning with respect to the functions of the office and shall coordinate the activities and programs of the departments and divisions within the office. The secretary shall continually review the operations of the office with a view toward improving administrative organization, procedures and practices, promoting economy and efficiency.

116 The secretary shall prepare annually a report of the organization and activities of the
117 office as individually reported by the various departments and divisions within the office, the
118 assignment of functions to various administrative units, officers and employees, and of the
119 established places at which, and the methods whereby, the public may receive information or
120 may make requests, and such other matters as the secretary deem appropriate.

121 The secretary shall annually evaluate the status of the production, distribution, labeling
122 and consumption of food within the commonwealth. This evaluation shall be submitted as a part
123 of the report referred to in the preceding paragraph, and it shall be accompanied by
124 recommendations for appropriate actions to be taken to achieve best practices with respect to the
125 production, distribution, labeling and consumption of food within the commonwealth.

126 In order to carry out the provisions of this chapter the secretary may, and is encouraged
127 to, seek the laboratory, technical, education, and research skills and facilities of state institutions
128 of higher learning.

129 Section 6. Subject to appropriation, the secretary, with the approval of the governor, may
130 appoint such experts and other assistants as he shall deem necessary to perform the functions of
131 his office, provided that the provisions of chapter 31 and section 9A of chapter 30 shall not apply
132 to any person holding any such appointment. Every person so appointed to any position in his
133 office shall have experience and skill in the field of such position. So far as practicable in the
134 judgment of the secretary, appointments to such positions in his office shall be made by
135 promoting employees of the commonwealth serving in positions which are classified under
136 chapter 31, and such appointments shall at all times reflect the professional needs of the
137 department or division affected. If an employee serving in a position which is classified under

chapter 31 or in which he has tenure by reason of section 9A of chapter 30 shall be appointed to a position within his office which is not subject to the provisions of chapter 31, he shall upon termination of his service in such unclassified position be restored to the position which he held immediately prior to such appointment; provided, however, that his service in such unclassified position shall be determined by the civil service commission in accordance with the standards applied by said commission in administering chapter 31. Such restoration shall be made without impairment of his civil service status or tenure under section 9A of chapter 30 and without loss of seniority, retirement, or other rights to which uninterrupted service in such prior position would have entitled him. During the period of such appointment, each person so appointed from a position in the classified civil service shall be eligible to take any competitive promotional examination for which he would otherwise have been eligible.

Section 7. There shall be a department of food production broadly tasked with promoting the effective, profitable and safe production of food throughout farms and fishing communities located in the commonwealth.

Section 8. There shall be a department of food labor and workforce development, which shall: (1) develop programs that provide economic incentive to food producers; (2) create a workforce in food production that gives rise to an attractive environment for future food production workers and researchers; and (3) encourage, support, and undertake research into alternative centers of economic growth for food production and distribution within the commonwealth, including projects like the Gloucester Genomics Institute.

Section 9. There shall be a department of food innovation, development and research, which shall undertake research and maintain laboratory and other research facilities to provide

information to food producers and other interested parties regarding the science behind food production. The department shall undertake research regarding the impact that specific environmental, biological, meteorological and chemical conditions have on food production in the commonwealth in order to, develop new sciences, proposals and techniques for the conservation and enhancement of fields, water and wildlife for food production.

Section 10. There shall be a department of investment and financial planning for food production, which shall identify and select food producers who are eligible to receive loans from the Massachusetts Development Finance Agency pursuant to clause (17) of section 3 of chapter 23G, based on criteria to be determined by the department; provided, however, in selecting food producers pursuant to this section, the department shall give preference to food producers operating in designated port areas. The department shall research and investigate production and operation methods of food producers, including the possibility and efficacy for producers to utilize shared equipment and infrastructure, and make recommendations to reduce input costs associated with production and transportation. The department shall develop programs and make recommendations to food producers designed to attract entrepreneurs and other new investors with a focus on providing equity-like, risk capital for production growth to be supplied in smaller amounts and at lower returns.

Section 11. There shall be a department of food security, identification and labeling, which shall develop and administer programs and policies to improve food management and security and shall research the efficacy and implementation of next-generation food tracking systems, food management policies and labeling procedures to ensure a secure food infrastructure in the commonwealth.

182 Section 12. There shall be a department of economic development for locally-produced
183 food that shall develop and administer public relations campaigns and marketing and branding
184 programs to encourage public institutions and private businesses to purchase locally grown foods
185 in order to strengthen and maintain local food producers positions in the local marketplace.

186 Section 13. There shall be a department of nutrition and food health, which shall develop
187 and administer a public relations campaign and other programs designed to: (i) provide
188 nutritional education to food producers and consumers; and (ii) encourage consumers to adopt
189 healthy eating habits.

190 Section 14. There shall be a department of self-sufficiency for food production, which
191 shall develop and administer programs to strengthen food production in the commonwealth so
192 that in the future, Massachusetts would be better suited to feed all its citizens without importation
193 of food from other states.